

upon to determine. The order of the House of Lords in this case was made with the approbation of Lord Ellenborough and Lord Erskine (who took part in the debate), and also of Lord Thurlow (*b*). But Lord Eldon denied before the House that there was any distinction between articles and wills, and therefore relying upon *Foley v. Burnell* and *Vaughan v. Burslem*, two cases upon wills decided by Lord Thurlow, he said, had the cause come originally before him, he should have decreed the absolute interest to have vested in the eldest child upon birth; that assignments had been made of leasehold property under a notion that a son when born would take an absolute interest; and, were the House to sanction the decree of Lord Loughborough, it would shake a very large property (*c*). However, his Lordship conceived that Lord Hardwicke's doctrine was originally the best, and therefore, recollecting the opinion of that great Judge, the opinion of Sir Joseph Jekyll, and the decision of the Court below, and knowing the concurrent opinions of Lord Ellenborough and Lord Erskine, and also the opinion of Lord Thurlow (whose present sentiments, however, he could not reconcile with the cases of *Foley v. Burnell* and *Vaughan v. Burslem*, formerly decided by his Lordship) (*d*), he bowed to all these authorities; and, though he was in some degree dissatisfied with the determination, he nevertheless would not move an amendment (*e*).

Personalty cannot be knit to realty entirely.— It must be observed that a settlement of the personalty cannot be made exactly analogous to a settlement of the realty, whether the limitation adopted be “on dying under 21,” or “on dying under 21 without issue.” For if the former be supposed, then, the object of the articles being to knit the personal estate to the freehold, if the son die under age leaving issue who will succeed to the freehold, the two estates will go in different directions. But if the *limitation [*117]

(*b*) 12 Ves. 237.

(*c*) 12 Ves. 236, 237.

(*d*) Lord Eldon could not reconcile Lord Thurlow's opinion with these cases, because his Lordship refused

to admit the distinction between articles and wills.

(*e*) The Countess of Lincoln v. The Duke of Newcastle, 12 Ves. 237, and see *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 543.